

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY DIVISION**

IN RE: THE MARRIAGE OF

SARAH HANSON,
Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON,
Respondent,

_____ /

RESPONDENT'S MOTION FOR RULING ON OBJECTIONS

The Respondent, CHRISTOPHER HANSON files this Motion for Ruling on Objections pursuant to Fla. Fam. L. R. P. 12.351, and, in support thereof, states:

1. The core problem that spawned months of litigation, delays, and escalation of stress and costs is a straightforward discovery one.
2. The fact that this minor issue has spiraled out of control is precisely what I tried to avoid by getting an attorney and always pushing for a fair and timely result.
3. While I may seem like the problem in terms of why the hearing is necessary, I beg you to take a look at the correspondence and/or give me additional time to properly lay out my thoughts.
4. While straightforward, it is a deeply emotional and stressful discovery issue as I helplessly endure what can only be some type of an ongoing betrayal now using litigation tactics to continue disrupting our family's ability to heal, communicate, and work together as a team. Before this discovery issue came up, we were able to do that and that remains my objective once this discovery is done.
5. I object to the withdrawal because I'm still desperate for help, just like I was 7 months ago and I know how long it will take to get an attorney up to speed and I

{00662066-1 }

don't want to deal with Mr. Davis's tactics especially being unfamiliar with Circuit Court and family law.

6. Given the lack of results for the last 7 months, I'm more concerned than ever that this will continue to hasten moving forward as a family as no one has been willing or able to help.

7. I've filed several emails that contain extensive information about my efforts to get my attorneys to take action in pursuing my singular objective despite a clear understanding from all on just how urgent this is from the first conversations with each attorney.

8. Every email I drafted and filed is true and accurate, and I'm requesting the Court take those and this pleading into consideration in making a determination even if I'm not able to attend and the Court cannot review all the documents.

9. In order to allow Ms. Hodz to fully explain her rationale in attempting to withdraw in the manner she has, I waive any attorney client privilege on any communication she needs to disclose to support her position.

10. I'm also hoping that the openness and candor of producing otherwise privileged materials may help persuade the Court and/or Wife to assist in entering an order that will help the parties complete the discovery timely and move on.

11. There are several long outstanding and pending tasks I'm asking the Court to require Ms. Hodz to diligently pursue. Those include:

- Draft and diligently pursue a hearing on a motion to compel a response to my RTP that covers the relevant facts and case law arguing for at least 3 years of discovery from date of filing.
- Draft the Response for the amended petition for dissolution taking the position that you advise best on that outstanding question I've had since the October

21, 2024 email. (Exhibit K, p.4)

{00662066-1 }

- Continuing to pursue the deficiency on the mandatory disclosures including the specific failure to certify no accounts during the proper time period as we have discussed several times.
- Drafting the subpoenas to the financial institutions referenced in Wife's disclosure to date.
- Obtaining an order on the Subpoena to Chase Bank and diligently pursuing those records in accordance with the Court's order.

Course of events since I retained Ms. Hodz.

12. Ms. Hodz was well aware of the Wife's ongoing obstruction to discovery and my urgency in getting a motion to compel filed, addressing the Wife's primary custody claim, and generally getting the discovery resolved ASAP even prior to her formal appearance on the case. (Exhibit K, p. 3-4).

13. In fact, before Ms. Hodz even signed on as the attorney, I reminded her in a 10-21-24 email about my frustration level and the need to have a fighter on my side for this, specifically offering the option of suggesting another attorney if she were not up to the task:

But just let me know if you think that given my frustration with the past firm, you have any concerns about whether another attorney would be a better a fit for what my goal is here.

I really need someone that's going to fight for me on this. Please let me know if you want to discuss anything. I believe there's a couple more emails that came thru over the weekend, and I'll take a look at those now. (Exhibit K, p. 4 from 10-21-24 email).

14. Despite this offer to avoid what she knew was a very contentious discovery issue, Ms. Hodz took on the case.

15. It turns out that Ms. Hodz was not actually doing any of the actual

substantive work I urgently needed the entire time she was on the case.

16. I specifically asked about the lack of any work product on December 10, 2024 (Exhibit K, p1), and Ms. Hodz has since confirmed that she did no work whatsoever on the motion to compel nor the Response to the Amended Petition for benefits, ***precisely the issues I raised as top concerns in that 10-21-24 email referenced above.***

17. My discovery efforts were consistently met with such a long pattern of unnecessary obstruction and delays from Mr. Davis that if one looks at the history closely, it's impossible to conclude anything other than that Wife adopted a litigation strategy of obstruction, delay, and harassment/bullying Husband into dropping the discovery pursuits.

18. My attorneys consistently refused to offer any harsh words or even ask a pointed question about Mr. Davis's handling of the discover efforts, despite evidence of an ongoing attempt to actively conceal still unknown information.

Concerns with the manner in which Ms. Hodz is attempting to withdraw:

19. During a phone call with Ms. Hodz on November 15, 2024, the day after she finally accomplished the long awaited call with Mr. Davis, her attitude toward the case completely changed. His delay takes for putting that conference off several weeks will be discussed below.

20. She told me that if I didn't cooperate with what Mr. Davis wanted to negotiate despite the lack of cooperation or answers from them, she didn't think she couldn't help me anymore.

21. Of course, I was frustrated, but willing to work with Ms. Hodz as all I want is to get this resolved.

22. Ms. Hodz went on to tell me that I'd have to get, "one of the really
{00662066-1 }

aggressive male attorneys in town,” if I didn’t want to cooperate with Mr. Davis’s demand.

23. What Mr. Davis is saying to my attorneys to take them from, the attitude that “this is a simple discovery issue” to “I can’t help you” is another huge mystery to me.

24. It very much appears that Ms. Hodz put off all of the actual labor intensive work on the case in hopes the issue would resolve with the phone call.

25. Immediately after that happened, it’s appears that Ms. Hodz was looking for a way to unload me as a client as quickly as possible with zero assistance on the substantive work I hired her to do.

26. Especially given Ms Hodz manner of attempted withdrawal and terminating the attorney client relationship without any notice or guidance (Exhibit H), my best and really only viable option is to keep her on the case to help get through the discovery issues and/or have her diligent assistance at least until another attorney can take over.

27. The fact that Ms. Hodz is so desperate to drop me immediately as a client given the lack of any ethical concerns whatsoever and even the lack of any “irreconcilable differences” that she’s pointed out, I’m extremely confused and frustrated by my attorney’s behavior.

28. However, the fact that she is so desperate to get rid of me may actually help produce some urgency as I’ve requested for 7 months with no results.

29. I don’t know what my rights are in this situation, and had requested some time before this hearing in order to investigate that and prepare an argument and corresponding evidence.

30. I’m preparing this rushed, uninformed, and exhausted.

31. I retained now 2 different attorneys so I didn’t have to go through frantic,
{00662066-1 }

sleepless nights trying to figure out unfamiliar laws, computer systems, and Court procedures like Ms. Hodz's conduct has forced on me multiple times recently.

32. It took 2-3 months from the time I reached out to Ms. Hodz before she was even up to speed enough to file a notice of appearance.

33. When you consider the urgency with which I described my objective and the consequences of that delay in my October 21, 2024 email, that type of delay to get the new attorney up and running seems unfathomable to me although I will do whatever I have to do in order to get some timely and fair resolution to this.

Ms Hodz's evolving explanation for withdrawal now basing her position primarily on events from after she refused to do any work or answer any questions:

34. On December 3, 2024, Ms. Hodz filed a 2 sentence motion for withdrawal that referenced "irreconcilable differences."

35. I continue to struggle with what those are.

36. Furthermore, before I ever sent the any correspondence to opposing counsel, Ms. Hodz had already indicated her attention to withdrawal.

37. In her expedited motion for withdrawal and other correspondence with the Court, Ms. Hodz seems to characterize my conduct as erratic and unreasonable necessitating a hearing that I clearly have great difficulty attending on 2 days notice, while I've been waiting for a motion to compel the response to RTP for several months.

38. I filed much of the correspondence so the Court can see precisely what occurred. Everything I said in the correspondence is true and in terms of what I sent Mr. Davis, it's precisely what I would have done a long time ago if I had a client suffering these delays and obstruction.

39. Regardless, I informed Ms. Hodz on several occasions that I would cease any communication with opposing counsel if she would simply actively work my case to

{00662066-1 }

get me the discovery. (Exhibit J, p. 1, 12-3-24 email to Ms. Hodz).

40. Once Ms. Hodz knew that the phone conference with Mr. Davis could not resolve the issues, she was determined to get out of the case.

41. Based on the lack of any ethical concerns and no clear irreconcilable differences, withdrawing under these circumstances is inappropriate.

42. However, looking more closely at the “immediate” withdrawal, that she wanted to force on me, (with no notice, and without assisting on any active efforts including getting an order on the Chase subpoena, the deficiency letter, nor doing any work whatsoever from day one on the main issues for which she was hired - the motion to compel a response to the RTP, a response to the amended petition for dissolution, and several subpoenas), it’s clear that her actions are immensely prejudicial in terms of time, stress, cost, and impact on the familial relationships, at a minimum.

43. There is no compelling reason for withdrawal and many to support requiring Ms Hods to advance the discovery issues that have remained the same for over 7 months.

Evidence of Mr. Davis’s unreasonable litigation tactics and ongoing delay and obstruction:

44. I’ve been frustrated with Mr. Davis’s conduct and my own attorney’s refusal to call any of it out ever since I was waiting for some answers on the stipulated date of discovery and nothing came in.

45. The email I sent to Mr. Davis on November 25, 2024 (Exhibit A) was truly my good faith effort to push this forward based on years of litigation experience.

46. Hesitance to stand up to Mr. Davis while avoiding the substantive work has left me in this position. It’s an unreasonable violation of the duties owed to me as
{00662066-1 }

Ms. Hodz's client.

47. Everything I've seen suggests that Mr. Davis had no intention of complying with the June 28, 2024 stipulated date for production, waiting to produce a strategic packet of records apparently including records he had already had for months and likely excluding records he already had, but wanted to use for his "strategic trickle" delay strategy which I never saw in 16 years of often very contentious litigation in work comp defense.

48. He's actively worked the discovery issues in a manner where it seems he's attempting to create leverage against me out of tedious and unscrupulous tactics all of which I don't have time to concisely lay out for the Court today.

49. I respectfully request that the Court review Exhibit A, p.2 starting with "Timeline on discovery issues to date" and going thru at least, p. 4, "Mrs. Hanson's filing for "primary" custody in Amended Petition" to get a sense of some of the concerns.

50. During my Call with Ms. Hodz on November 15, 2024, she specifically mentioned custody issues as one of the topics I had to discuss even as they failed to comply with a court order and use sneaky tactics to prevent or at least put off actual enforcement of the order.

51. It's clear to me and hopefully at least evident that the primary motivation to seek primary custody is litigation as this was always an area of agreement for years that it would be 50/50.

52. There are even concerns about potential inappropriate influences on the children and the Court may look to the Exhibit K, p. 4 (10-21-24 email) for more information about that if the Court agrees that's an appropriate consideration on the prejudice issue.

Mr. Davis's actions to delay the conference with Ms. Hodz

53. While I'm unable to find the email documentation currently, I believe the conference between Ms. Hodz and Mr. Davis was initially set for mid October sometime.

54. Just before the call was schedule to take place, Mr. Davis cancelled the call and refused to reschedule it until Ms. Hodz could file her notice of appearance.

55. Mr. Davis should have to answer for what changed between setting the first call when there was no notice of appearance, and then suddenly cancelling it and refusing to reschedule until there is one.

56. Once a notice of appearance was filed, Mr. Davis eventually agreed to an 11-14-24 conference which he failed to attend.

57. The reactions of fear and helplessness my attorneys had to their conferences with Mr. Davis suggests he may be using such tactics to push my representatives away from pursuing the case on my behalf.

58. There is additional prejudice toward me in this matter because finding an attorney willing to take me on as a client after going thru 2 attorneys, with almost none of the substantive work I've pushed for the past several months.

59. Furthermore, I could go thru this again where Mr. Davis avoids a conference with my new attorney for a few months, while nothing gets done, and after the call, the new attorney is similarly frightened by whatever he is doing.

60. Especially when Ms. Hodz was well aware of the case dynamics and urgency, allowing her to withdrawal is potentially catastrophically prejudicial if for some reason I'm unable to get the relevant records due to all the delays the attorneys have caused/allowed.

Course of events with Harris Hunt and Derr (HHD)

{00662066-1 }

61. The discovery still remains at issue despite contacting Katherine Scott precisely 7 months ago today with a request for urgent assistance on this one discovery issue.

62. I wanted to get that done as quickly as possible to avoid escalation, and then turn our attention to resolving everything amicably once answers were obtained.

63. Both attorneys at Harris Hunt and Derr (Katherine Scott and Gracie Samarkos) and Ms. Hodz agreed it was a very straightforward discovery dispute and getting 3 years of financial documents should not present any problem under my facts. This same discovery objective I had 7 plus months ago (now far more complex and contentious due to my attorneys' inaction) remains the core issue in the case.

64. With never practicing in the Circuit Court (nor any Court system outside of the work comp system), various health problems, and the critical importance of this issue for a health coparenting relationship, I retained and relied on first, Harris, Hunt, and Derr, and then Ms. Hodz to move my case forward with the urgency it required.

65. Knowing that a lawyer, and especially me, could be a bad client, I simply did everything that was asked of me in compiling documents and allowed Harris Hunt and Derr to handle the case as they saw fit with minimal oversight for a couple of months.

66. By late July 2024, it was apparent that work was simply not getting done to advance my objective.

67. While I had asked Harris Hunt and Derr (HHD) at least 7 times to issue a comprehensive RTP to Wife, my lawyers had still not sent one in early August.

68. In fact, each of my HHD attorneys at least argued against and even refused to issue a RTP each telling me I already had a subpoena and didn't need the RTP. I was always under the impression that they were doing it because to my recollection, I never acquiesced in not sending it.

69. This still makes no sense to me as literally the only reason that I needed an {00662066-1 }

attorney was to get Wife “to produce” documents, and not “requesting” what I need seemed crazy - especially given that I had to answer interrogatories and produce far more extensive information for Wife – even though she was well aware of all the information I had to compile.

70. I reminded HHD of some of the important background facts and the need for urgency in correspondence from August 1, 2024 thru August 2, 2024 (Exhibit L).

Conclusion:

71. My experience with JCC’s (Judges of Compensation Claims) are quite diverse, but one constant amongst all of them was the demand to cooperate with discovery and timely bring any disputes to the Court’s attention so the case can move forward.

72. I would have thought that would be even more important in family law when families are going through such painful and helpless suffering as the discovery drags on.

73. This matter should have been resolved after a review of the relevant facts, some research, and then drafting pleadings including one comprehensive motion to compel. Then, we get to a hearing as quickly as the Court’s available and we all move on.

74. That remains my only goal – getting the discovery and quickly resolving everything I can.

75. I fear that the prejudice for allowing Ms. Hodz to withdraw under these circumstances will be extraordinarily severe due to Mr. Davis and Wife’s ongoing commitment to obstruction and delay.

76. And the most frustrating thing about it is this all working out perfectly for Mr. Davis.

77. He’s getting precisely the result he wants to the detriment of myself and
{00662066-1 }

the wellbeing of my family.

78. It's quite reasonable to demand additional help from Ms. Hodz before she can simply drop me when it turned out the problem couldn't be fixed with a simple conference.

WHEREFORE, the Respondent, CHRISTOPHER HANSON, requests the Court enter an Order requiring Ms. Hodz to remain as active counsel and pursue the discovery that's been at issue the last several months to its conclusion including but not limited to:

- A. Draft and diligently pursue a hearing on a motion to compel a response to my RTP that covers the relevant facts and case law arguing for at least 3 years of discovery from date of filing.
- B. Draft the Response for the amended petition for dissolution taking the position that you advise best on that outstanding question I've had since the October 21, 2024 email. (Exhibit K, p.4)
- C. Continuing to pursue the deficiency on the mandatory disclosures including the specific failure to certify no accounts during the proper time period as we have discussed several times.
- D. Drafting the subpoenas to the financial institutions referenced in Wife's disclosure to date.
- E. Obtaining an order on the Subpoena to Chase Bank and diligently pursuing those records in accordance with the Court's order.
- F. Granting Respondent all other and further relief as this Court deems just and necessary.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all designated on e-service list on this 13th day of December, 2024.

{00662066-1 }

/s/ Chris Hanson

Chris Hanson

Primary E-Mail: cahanson77@yahoo.com